any advice and I have no disposition to volunteer it at this late day.

Respectfully submitted
E Perkins Smith

李仙得十条再度評論

Tokei June 26th 1874.

His Excellency
Okuma Shigenobu.

I have the honor to hand you a reply to the main points of Mr. Soneshi answers to a series of questions sent to him May 19th 1874. Which was submitted to Mr. Boissonade de Fontarabie on the 18th inst, and returned by him last night. The comments on this document by Mr. Boissonade are now ready, but he has not yet finished paper which your Excellency asked him to write the night befor last. He expects to finish it to night, and I will forward it to your Excellency, together with the comments, the moment I receive it.

I have the honor to be
Your Excellency's
most obedient, humble servant

Ch.s W. Le Gendre.

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Reply to the main points of Mr. Smith's Answers to the Questions submitted to him May 19th 1874.

— I —

Mr. Bingham's letter to General de Gendre.

I do not believe that the terms of Mr. Bingham's letter to me are clearly imperative. The expression "I notify you not to go" is certainly peculiar. In this case the Word notify must be taken in the sense of "giving notice" and therefore the idea to be conveyed must be inferred from the Word "notice" which means information, advice. Now

what is the information given? Unless we suppose that in the phrase as construed by Mr. Bingham there is an ellipsis of several words, the information or advice given, as conveyed by the Word "notify" is not complete. But the ellipsis makes the sense obscure. For it admits of the insertion between "you" and "go" of either "that you should not" or "that you must not" which convey entirely different meanings. If the first, then Mr. Bingham meant to give an advice; if the second, he intended giving an order. If Mr. Bingham meant to convey the latter idea to me, Why, when he was informed by me that I would not comply with his order, did he not take steps to enforce the same? The U. S. Consul at Nagasaki was

was instructed to keep the U.S.
"New York" in port. Why was he
not also instructed to keep ame-
rican citizens from going to
Formosa in conformity with orders
issued? The reason is very simple
in one case, as is admitted by Mr
Vmich, the Minister had no right
to stop the "New York" {see reply
to question No. 8}. But there was
no objection to his sending his
aid to the government, should
the latter desire to keep her from
proceeding on her voyage, and the
orders which he gave to the U.S.
consul at Nagasaki had no other
bearing {See Enclosure No. 1}
The worst that could have re-
sulted from the Ministers ac-
tion was a controversy between
the ship's Owners and the govern-
ment of Japan as to the conditions
upon which the charter party might
be broken. This he had nothing to
do with. For had the owners com-
plained of the order having been
issued, he would have said "I
acted by the desire of the Japanese
government and your recourse is
against the government." To the
Japanese government he would have
said: "Did you not wish me to
do what I did? If not, then why
did you not say so to the consul?
He was instructed to keep the ship
in port according to your wishes,
and you needed but to say that
your wishes were that she should
not be detained, and he would
have let her go."

With the Americans engaged
in the transaction it was some-what

different

different. The act which justified him in issuing an order to us not to go to Formosa with the mission being one that looks to prevention, not to punishment. If he truly believed, from the information he had received, that, by our connection with the mission we had brought ourselves within the description of persons enlisting to make war upon China, he would not have failed to restrain us from doing so by instructing the Consul to arrest us in case we should violate his order. Why did he not do so? Because, probably not being quite sure that, in going to Formosa, we were violating the law, and knowing that had he detained us without just cause, we could have ob-

tained redress against him in the courts of the United States, he issued no orders to us not to proceed to Formosa, and consequently, the Consul had no orders to enforce. But knowing well that the fact of his entering a protest against our being connected with the mission would have the effect he desired, he lost no time in preparing one. The issuing of this document had nothing hostile in itself to either the Japanese government or to us. It had been publicly stated in the press that Mr. Bingham had given countenance to what was then considered as an aggressive measure on the part of Japan against China, and Mr. Bingham, wishing to prevent the inferences that might be drawn from his silence by

ill

disposed persons, protected against the employment of Americans by the former in any way that could be construed as hostile to the latter. Who could complain? Not U.S. this government; for, had it asserted that the protest had been the cause of stopping us, Mr Bingham could have replied: "It was you who stopped them, not I. You were not bound, either by international law, or by treaty, to enforce the law of 1860, or to suffer it to be enforced against American citizens in your service and within your jurisdiction before you went to War. You were under no obligations to respect my protest" (see Mr Omiki's reply to question No 1.) "Why then did you detach those people from the mis-

sion?" and to us he could have said: "The government that you were serving, and not I, prevented you from going with the mission. I did not issue any Writ against you".

Taking all these points together, I do not think that the tenor of Mr Bingham's letter to me can be construed as being at all mandatory, but simply advisory, the seal of the United States which finds place on the document, being put there merely to give a non-committing emphasis to the kind words of caution, whereby he hoped to persuade certain persons, whose detention would perhaps be the means of stopping a mission he disapproved of, to remain behind, even if the Japanese

government did not take the initiative and detach them from the mission, or, after detaching them should reconsider its step and retract the order on ascertaining at last the true importance which they should attach to Mr. Bingham's protest.

II

The law of 1818. The Treaty of 1858 between Japan and the United States, and the law of 1860.

The above will become still more apparent when we come to consider the circumstances under which Mr. Bingham would have had the right to issue such an order, and none of which existed at the time he wrote me. I will suppose the worse case, that is, that the departure of the mission constituted, as Mr. Unish asserts that it did, an act of war against China, or, as he says, "a war without declaration". It must be remembered that I was engaged by the Japanese government long before the mission started, as was also Captain Cassel and Mr. Wasson. Now the treaty says that Japan shall have the right to engage in the United States ××× naval and military men ××× to enter its service ×× Provided that such persons shall not be engaged to act in a naval or military capacity while Japan shall be at War with any power in amity with the United States; and, as Mr. Unish says, I do not think that his proviso prohibits

Japan

japan from employing American citizens to act in a naval or military capacity who had been engaged before Japan went to War. Neither does the act of congress passed April 20th 1818, commonly called the Neutrality law, for when Captain Bassett, Mr. Wasson and myself joined the Formosa mission, we were all outside the jurisdiction of the United States.

Now we come to the act of 1860. In passing this act, the object of Congress was to arm the ministers and consuls of the United States in China, Japan and Siam with certain powers that would enable them to carry into effect the treaties with those powers, for which purpose previous jurisdiction was insufficient. It provides that it "shall be competent for each of the said ministers to issue all manner of writs to prevent the citizens of the United States from enlisting in the military or naval service of either of the said countries to make War upon any power with whom the United States are at peace, or in the service of one portion of the people against any other portion of the same people, and he may carry out this power by a resort to such force as may at the time be within his reach, belonging to the United States."

However stringent this law may appear at first sight, it can have but very little bearing upon the case at issue. It is, it is true

Arie, a law of the United States, binding so far as it goes, upon all American citizens. But the treaty of 1858 between Japan and the United States is also a law of the United States. Mr. Wheaton says: "Under the constitution of the United States, by which treaties made and ratified by the President, with the advice and consent of the Senate, are declared to be the supreme law of the land, it seems to be understood that the Congress is bound to redeem the national faith thus pledged, and to pass the laws necessary to carry the law into effect. {Wheaton's International Law § 226. Page 339}. Now we have seen that, by the terms of the treaty of 1858 between Japan and the United

States, persons, as Mr. Smith says, "who retain the character of citizens of the United States, and are in the service of Japan, may, without blame to themselves or Japan, serve Japan in a War begun after their entering the service." Of so, how could congress, which was bound, under the constitution, to legislate for the purpose of carrying into effect the terms of the treaty, pass a law that would virtually set at naught their provisions of this same treaty. In vain would we argue that the law of 1860 applies to United States citizens, and not to Japan. It is beyond question that Japan can claim certain privileges from the United States under the terms of the treaty of 1858. If by,

Mayer

depriving United States citizens of a certain proportion of their liberty in their relations With Japan and her people, either or both are debarred from enjoying these privileges, and if the enactment of the law of 1860 is the means of doing this. I say that the law of 1860 never could have been understood by the framers thereof to apply to Japan, and that it Was never intended that it should. Now We must not forget that the law of 1860 Was framed, as Mr. Smith says, chiefly because some American adventurers, notably Wood and Burgevine, had taken an active part in the troubles between the Chinese government and the Tai Ping rebels, Burgevine having given

his aid in turn to both sides. Congress Was anxious to prevent by legislation the recurrence of such proceedings, not only in China, but in all the countries Where it Was likely they might again take peace; and to prevent all possible transgression of the law, this body extended the prohibition from enlisting in the armies of contending parties in cases of civil Wars among those nations, to entering the army or navy of either of those countries While at War With some power With Whom the United States have treaties of peace and amity. So What relates to China or Siam, neither of Which has such a clause in her treaty as the one referred to above, this law can be carried

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ous, but it cannot be legally en-
forced in Japan. It could be,
however, were the law to be emb-
odied in a new treaty, but it
has not been so embodied, and un-
till it has been, it cannot effect
or modify the treaty of 1858. Without
the express consent of Japan in
very case, and in the present
instance, We must infer that his
consent has not been given from
the fact that, contrary to the sti-
pulations of the law of 1860, but
in accordance with the terms of
the treaty of 1858, three Americans
were engaged by the government
of Japan to serve with the For-
mosa mission previous to a
declaration of War against either
the aborigines of the island or
the Chinese Empire; and the

provisions of this same treaty can
be invoked by both Japan and the
citizens of the United States in justi-
fication of their acts in all the
courts where the laws of the United
States are enforced.

III

Is Aboriginal Formosa a part of the Chinese Empire?

—a—

In issuing to Captain Cassel,
Mr. Wasson and myself orders not
to proceed to Formosa, not only
would Mr. Bingham not have been
justified, under the three heads enu-
merated by Mr. Smith, because the
treaty of 1858 between Japan and
the United States is not affected
by the law of 1860, but also and
chiefly because Aboriginal Formosa
is not a part of the Chinese
Empire

Empire. In endeavoring to prove that it is, Mr. Smith argues by analogy. He says: "Aboriginal tribes in Formosa, occupying part of an island inhabited largely by a civilized people like the Chinese, can not be regarded as powers. They are, presumptively, subjects, whether quiet or turbulent, of the recognized empire which has taken and held possession of the civilized portion of the island. They are, I imagine, in respect to China, to be regarded not as foreign states, of states at all; but as domestic, dependent tribes, or communities, administering some crude system of government, each in its little domain, but all under the protection of China, and subject to such Chinese jurisdiction as China may find it necessary or convenient to exert. Indian tribes in the United States are in the same anomalous condition. Their relation resembles, as says Mr. Wheaton (Part 1. chap 2 § 14) that of a ward to his guardian. The principal employment of the American army is to endeavor to make them obedient. Words. There is almost constant war between some of the Indian tribes and the military forces of the United States; yet nobody imagines that the Indians are not the subjects of the United States. No one ever thought that the United States would regard an invasion of any Indian tribe by a foreign nation as anything else than an act of War upon

the

the United States"

—6—

The Formosan Aborigines and the American Indians.

Now I do not think that there is the slightest similarity between the two cases, that of the Indians in America and that of the Formosans in Formosa. The Indians of America live a wandering sort of life in a country which has but a few settlements of White colonists scattered over it, and which belongs to several powers, England and the United States at the North, and Mexico and the United States at the South. The inconveniences resulting from the depredations of the Indians are equally shared by the states

that border each other, and are the results of a condition of affairs which is fatal, and which it is the interest of each state to bear in silence, With the Formosans it is different. They are placed between China and a maritime roadstead which is common to the Whole World. The damages inflicted by them upon the colonists of China are more than compensated for by many advantages, both commercial and political, While the depredations they commit on the commerce of the World are not compensated for by any advantages Whatever, either immediate or eventual.

Neither is the title of China to aboriginal Formosa to be compared with that of the United States to the Indian Wilds. The origi-

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original title to the Wild lands of America was acquired by the French, the Spanish, or the British against all other European governments by discovery, or by conquest, and it was consummated by possession through a long term of years, their justification for the act being that they would do all they could (though they often failed) to make compensation to the Indians by bestowing civilization upon them in exchange for their limited independence. China can not boast of having done anything of the kind in Formosa.

— c —

China derives no right to Aboriginal Formosa because of its alleged discovery by her in 1436 (1st year of Ying Tsung

of the Ming Dynasty.)

China derives no right to the islands because of its discovery by her, as she claims, in 1436, for this relates only to the Pescadores and the Middle Western coast, and War not followed up by immediate occupation. Sovereignty over territory that belongs to no state is acquired by the taking possession of it by some state. The simple intention to take possession, or the symbolical or formal indication given that it is the intention to take possession, or even a provisory occupation, is insufficient, for the mere discovery is only an act of science or daring and not of politics. The taking possession consists in politically organizing

the

the country recently discovered, added to the intention to exercise authority over it in the future. The fact of planting a flag or other emblem on a coast newly discovered, may serve as an indication of the intention to take possession thereof, but it not be considered as an equivalent for truly constituted authority. When, in 1436, the Chinese discovered the Pescadores and one island on the West coast of Taiwan, they did not take possession of either. What did take place. Was this: a Chinese grandee named Wan Dan pan Was cast, in a storm, on a small island which has since been united to the main land of Formosa by an earthquake, and which he called Taiwan, or "Terrace Beach". It Was situated about three miles

north west of the spot where Taiwan-foo not long after Was built, and exactly where the small village of Anping and the old Dutch fort, Zelandia, which are marked on all charts, now stand. The island, which Was afterwards named Formosa, from the name given to their colony of Tekang at the beginning of the 17th century or the end of the 16th by the Portuguese (see map, Histoire Generale des Voyages, etc. La Haye MDCCXLIX. Tome 7. Page 74.) and Taiwan by the Chinese, Was called by mariners Pak Kanda, probably its native name. Wan Dan pan remained some time at Taiwan to gain information concerning the country and its inhabitants, and then returned to China. In 1564 (42nd year of the Kioung, Ming Dynasty)

another Chinaman named Ye-To-yen, Who Was cruizing With his squadron in the China sea, being suddenly attacked by a daring pirate named Lin Tou hyen, Was compelled, after a fight that lasted five hours, to take refuge first at Pong hou and then in Formosa. But the fear of not finding safety on a coast With Which he Was not acquainted made him return to Pong hou Where he left a garrison.

In about the year 1620 (1st year of Kwang Tsung Ming Dynasty) a Dutch Vessel Was cast on a storm on the coast of Formosa near the islet of Taican, and found the Japanese established there. The port formed by the islet and the main land of Formosa appeared so commodious

to the captain, that he asked permission of the Japanese to build a house on the islet, at the entrance of the harbor, on the pretext that it Would be of use to their Dutch in their trade With Japan; and as he promised to take no more land than could be surrounded by a cow's hide, the Japanese consented. The Work Was commenced at once, and the Dutch, using the same stratagem that Was resorted to by the Phœnicii-ans When they obtained permission to build Byrsa, cut the hide into thin strips, joined them together, and encircled With it a piece of land large enough to build a fort on. In 1630, (12th year of Kwan Tsung Ming Dynasty) this fort Was rebuilt of brick. Also for the Japanese, owing to a change in their posi-

tion

lies Whereby their relations With the outside World Were to cease, and, With them, all distant expeditions. They gave up their designs of conquering the country. In 1634 (6th year of Hwai Tsung.) the Dutch increased their establishment at Taiwan (see Histoire General des Voyages Tome VII Page 175), but subsequently, becoming mixed up in the political complications that arose between the Tartar and the Chinese patriot, Koxinga, they, unfortunately for themselves, inclined for the former. But being deserted by them and left to fight their quarrel alone With Koxinga, they Were attacked by him, defeated, and, after losing one after the other of their establishments from Kelung, the northern most one, to Tétayan

the southernmost, they Were finally driven from their stronghold, Fort Zelandia, in 1662 (1st year of Kang hi, Ta Tsing Dynasty), and returned to Batavia. (Vide Relation de la prise de l'isle Formosa par les Chinois, le cinquieme juillet, 1662. Traduite de l'Hollandois, a Paris, MDCLXIII. Pages 30 to 40) The treaty of surrender Was drawn up in eighteen articles, and related only to the transfer of the fort, the exchange of prisoners, and other minor matters (see t' Verwaar loos de Formosa etc t' Amsterdam 1675).

Koxinga's reign Was a short one, Kisten, Who succeeded him, remained in quiet possession of the throne up to his death In 1682 (19th year of Kang hi), however, the Tartars, having firmly established

ed their supremacy over China, re-
solved to extend it to Formosa. Chin
ke san, a grand-son of Koxinga,
Was then on the throne. He possessed
none of the qualities and talents
of his grand father; and even before
the Tartar army had reached his
shores, he submitted to them and
Was sent to Pekeng. While his king-
dom from that time (1683. 20th year of
Kang he) has been a dependency
of the Chinese crown. The territory
thus surrendered to China had
for its limits Kelung to the North,
and a place called Sha ma auh,
or Cha ma ki touw to the south. It
Was bounded to the East by the
high chain of mountains that stre-
tches from Pong liu to Vao o Bay,
but it did not extend so far
as Vao o Bay, and stopped at

Kelung. The portion from Kelung to
Vao o Bay has only been annexed
of late year (1812, or 16th year of Kea-
King, Ta Tsing Dynasty. see Report
of the Commissioner of customs for
the Port of Kelung, 31st January, 1869.
Published by order of the Imperial
government).

Padres de Mailla and Hender-
er, Who made the map of Formosa
in 1712 (70th year of Kang he) by
order of the Emperor Kang he (see
Nouvel atlas de la chine, etc etc.
La Haye MDCCXXXVII. Plate 6) Were don.
btless well acquainted with the Dutch
charts of the island (see same atlas,
Plate 2), in Which the Whole line
of coast, comprising both foreign
and aboriginal Formosa, Was given
(see Van Braam's chart), but pro-
bably they had orders not to com-
prise

prise the coast of aboriginal Formosa in their survey of the country that belonged to the Middle Kingdom, for it is left out on their maps. The map of Chang Hee King, made in the 11th year of Tea King (1807), evidently traced from the surveys of the Jesuit, offers the same peculiarity; and so do the latest official maps of Formosa, which are to be found in the "Taiwan Fze" a history and description of Formosa circulated under the imperial patronage, to promote emigration to the colony.(a) In the latter, an idea of the portion of the island which is left out on the official maps is given by a grotesque picture of the sun

(a) - Mr Williams, in his "Middle Kingdom," New York edition, 1861. Vol. 1. page 117, says: "The limits of

rising from the boiling Waters of the Eastern Ocean, in the vicinity of a mass of rocks, piled one upon the other, and supposed to represent the land. On this picture there is nothing that can be taken to show the connection that exists between this Wild and the Chinese possessions, not even a sign from which one Way judge Where the place may be. For all the reader May know, it may be twenty miles away from Kuh-Kan-Shan,(a) and it may be two hundred. All that is certain is that it

the Chinese jurisdiction on Formosa according to native maps, extend over half the island, reaching an further East than the Kuh-Kan Shan, a ridge of mountains running through the middle of the island".

(a) See note, preceding page.

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is outside of the Empire, and therefore, no books that give a comprehensive idea of it would receive the approval of the Board of Rites. When the Chinese speak of that portion of the island they say: "It is not in the books", an expression which, to make it intelligible to most readers, Chinese translators have rendered: "It is not obedient to our laws." They had better have said: "It is unknown to us".

When there is no indication of any knowledge of a place, there surely can be no discovery. In this case it cannot be held that there is either the sole inference to be taken from the Chinese maps is that their possessions in Formosa end

at the chain of mountains to which I have alluded above. Outside that chain, the terra incognita is clearly indicated by the absence on their maps of both coast and water. It is simply blank paper. In such a case, how shall we, who know that, beyond the Mah-Kan-shan, there is a region called aboriginal Formosa, determine the frontier line between the two countries, the Chinese and the aboriginal?

In the absence of clearly defined frontiers, Bluntschli says (§297):

"When two countries are separated
" by a chain of mountains, it is
" admitted, when in doubt, that the
" highest edge and the lines of divi-
" sion of the waters form the limit.
" Chains of mountains of low ocean
" to divide nations. × × × × Nations un-
derstood

derstood this early, and made of mountains their natural frontiers.

In this case we do not need to go to the summit of the Muh-Kan-Shan to find the frontier, the Chinese ever since the conquest of Chinese Formosa by Koxinga; having been unable to go further than the lower range of hills that form the base of Muh Kan Shan; and to protect themselves against surprises and ambuscades, the aborigines have cut down all the trees from the base of that range for a short distance towards the summit, the land thus cleared being looked upon by both parties as a sort of neutral ground where they meet to carry on their trading operations with each other. This neutral ground is the frontier line; and any one who dares

to cross it without permission, is shot down. During my trip from North to South of the island from December to March, 1869-1870 I marked that line on the chart of Formosa made by Com. Brooker in 1867, deriving my information partly from the Chinese of the plains and partly from personal observation; and I have very reason to believe that it is correct. (See U.S. commercial relations, 1869, page 103).

—d—

China derives no right to aboriginal Formosa from the conquest by Koxinga in 1662.

Having shown that the Chinese do not derive any right to aboriginal Formosa from discovery, I will now proceed to prove that they

they derive none from conquest.

Koxinga was not long in realizing the importance of extending his possessions in Formosa from coast to coast. To this end, after the signing of the treaty of 1662, he sent several expeditions to the aboriginal country in the neighbourhood of Liuh-Shang, or Jade Stone Mountain, the mountain of our maps, to take possession of it, and subdue the inhabitants; but each time he was repulsed with heavy loss and at last concluded to give up his design. No one has since made any further attempt in that direction. This resolution to abandon the idea of ever conquering aboriginal Formosa was dictated, the Chinese say, according to

Mr. Vainhoe, who quotes from a native document, by a supreme power. "On one of his attempts to penetrate this mountain, Koxinga fell in with an old grey headed woman, who begged him to retreat, and presented him with two large pieces of jade as return for the labor he had undergone in proceeding so far. These he accepted, when she bound him to have the finest piece cut into a seal for the Kwan-yin goddess (the Chinese ceres), to be deposited on the shrine of one of her celebrated temples. The other piece he was at liberty to fashion into a girdle buckle for himself. On his return, he neglected the promise he had made, and ordered his own name to be cut on the larger piece. The name was

engraved

engraved as desired, and the seal
brought to him; but on taking
it into his hand, and looking at
the device, the characters transformed
themselves under his eyes into the
title of the goddess. Enraged, he
had the words erased, and his
own name once more carved, but
the impression again proved double.
upon this he grew alarmed, and
devoutly presented the seal as an
offering to the Great Shrine. It
so happened that the old woman
who presented him with the jade,
was no other than the goddess her-
self in disguise." (See page 17
of Notes on the Island of Formo-
sa, by Robert Swinhoe F.G.S.
F.L.S., &c., H.M. Consul at
Taiwan. Read before the British
association at Newcastle, Aug. 1863,

and before the Geographical society).

But what color and a shrill
has failed to obtain, the Chinese un-
dertook to accomplish through craft.
Not daring to go across the moun-
tains to meet the aborigines, they
sent a small vessel to a port on
the Eastern coast where they suppos-
ed they could establish settlements.
The inhabitants received their deputy
well; but intimidated or rendered
suspicious by the large number of
the party, they gave them no encou-
ragement to remain. The Chinese
seeing that their object was frus-
trated, then determined to leave.
Before sailing, under the pretext of
showing their gratitude to their
hosts, they gave them a feast.
after getting them under the influ-
ence of liquor, they fell upon them

With

with their weapons, killing a great number and dispersing the remainder. Then they left, carrying away with them everything they could find.

The intelligence of this proceeding no sooner became known over the Eastern portion of the island than all the inhabitants took up arms and invaded the Chinese portion, killing as many as they could lay hands on, sparing neither women nor children, and setting their habitation on fire. Since that time the order of War has not diminished between the two portions of the island.

(Histoire General des voyages. La Haye. MDCCXLIX. Tome VII. Voyages dans l'empire de la Chine, page 422.)

Nova Laya, chiefly to the northward of Taiwanfoo, in order to get at the complicit districts

where lie the inaccessible forests of the precious timber, the inhabitants of the plains some times make raids into the aboriginal territory; or else they try to inveigle the inhabitants of the mountains into giving them leases of certain tracts of land lying on the lower Western slopes of the Central range. Knowing that the aborigines are opposed to yielding to their demands for new grants, and that, when in the free use of their faculties, they would invariably refuse to allow any new advance of the existing frontier line, they take advantage of their fondness for ardent spirits, and, under some pretext or other, invite them to a feast and ply them with abundance of liquor. When they are fully under its influence

influence, bright colored cloth is presented to them, a pig is killed, and at the end of the repast the bargain is concluded amid innumerable toasts to eternal friendship. With the first rays of the morning even the unfortunate aborigines come to their senses and repent, offering to return the fatal presents by means of which they have been deprived of their beloved retreats. But the cunning Chinese refuse to break the bargain. Hence new feuds for hatred between the two races, and new conflicts which are not very apt to restore the harmony which, under the Dutch, existed between the Formosans and their foreign neighbours, and had so largely contributed to introduce civiliza-

tion among them.

—c—

China does not derive any right to aboriginal Formosa because of the contiguity of her colonies in the island to the aboriginal country.

Notwithstanding the many attempts made by the Chinese to extend their frontier line in Formosa, they are, at this day no further advanced than they were in 1683; and they have been unable to acquire, either by conquest, organization or capacity to civilize, the right to which Mr. Wenck refers as being the only one which they have over the aboriginal portion of the island, and which right devolves upon the civilizing power in any country occupied by

two

two races, the one civilized and the other not.

Mr Bluntschli says (International Law codified, page 165 § 291.) that no state has any right to incorporate more territory, uninhabited or inhabited by barbarians, than she is able to civilize or politically organize. The sovereignty of the state exists only when it is de facto exercised. For, the principle of occupation is based solely upon the fact that men are, both by nature and by destiny, called to live in a state of society and to organize themselves as states. But when a nation, (as in the case with China in Formosa) extends her so-called sovereignty over immense tracts, uninhabited or occupied by savages, and is utterly unable either to cultivate or to govern them, this state does not promote the object of human kind, but quite the reverse she delays the realization of this object by preventing other nations from establishing new states in these territories, and organizing them. There is true occupation only when it is real and durable. Temporary or symbolical occupation can but generate a fictitious right. A state therefore, does not violate the international law by annexing a country which some other state had only formally taken possession of or an anterior period. Especially is this the case with a country like aboriginal Formosa, over which the so-called suzerain has but imaginary rights.

Such is the state of affairs in aboriginal Formosa, and they have never varied since the beginning of the eighteenth century. I am aware that, in his reply to my question No. 5 Mr. Lemaire says that at the late period (1867) when the Chinese General, Lew, escorted me to Southern Formosa, he clearly asserted the authority of China over the region in precisely the manner which I thought adequate. If Mr. Lemaire had not, as he says, been rendered unable, for the want of documents, to reply to the balance of my question, he would have seen that what he offers as proof in support of his view of the case is just that upon which I chiefly and successfully too. I believe

base my argument in support of the opposite doctrine. It is true that the Chinese officer asserted his authority over the island in that case, but it was not in a permanent form. In my report of the 7th of November, 1867, to the U.S. Minister at Peking, I say: "The establishment of a fort had often been the object of a serious controversy between General Lew and myself; not that he would categorically oppose it; he had, on the contrary, acknowledged its advantages to the Chinese; but because of an obscure point in the Viceroy's instructions, he did not feel authorized to erect it before he conferred with the Foochow or Peking authorities. I could scarcely subordinate my departure to such

such delay, and yet I wanted the
port. I wanted it because of its
asserting the Chinese authority
where it had been so long denied,
for I considered that it would
command respect from the Na-
lutos, in case they happened to
lose sight of their promises; fi-
nally and chiefly, because it
would become a sure refuge
for the too numerous victims of
these stormy seas. In short, I
insisted and we agreed at last,
that a temporary fort should be
erected at a point selected by
me, and that in it they would
place two guns, a small force
of regulars, and 100 militia. This
provisional arrangement was to
be converted into a permanent
one as soon as the more expli-

cit orders that I was asked to soli-
cit, should have reached Jaintanpo.
I declared myself satisfied; for I
did not imagine that the Viceroy would
break his word with me; and should
he, I could then appeal with con-
fidence to the instructions of your
Excellency.

I must here render full
justice to the loyalty of the general.
In two days he had erected a
circular enclosure, formed of trunks
of palm trees and sand bags,
which I visited in company with
the generals. I did not see exact-
ly 100 men in the fort, but I
concluded to shut my eyes to
this deficiency; as a compensation,
doubtless, there were three guns, in-
stead of only two, as promised.
Over it the Chinese flag waved.

We

"We were about coming
" to the conclusion. The general
" had handed me a spy glass
" and nautical instruments belong-
" ing to the Rover. I had the body
" of Mr. Kint Mr. Pickering had
" left to bear to Joke-tok a
" red flag I sent him. I had
" only to consign to a regular
" Writeing With the Chinese authori-
" ties the results of the expedition.
" These documents established a po-
" int responsibility in this human
" duty between the savages and
" the Chinese from Liang Kiau
" bay to the port of Ta ou pong.
" It is the morale of the Whole
" expedition"

In February 1869. Wishing
to ascertain if H.I.C. Mis go-
vernment truly intended to give

effect to the action of General Le
as related above, I again went to
southern Formosa in company With
the interpreter Who had gone there
With me eighteen months before, and
Mr. Man, a gentleman in the
employ of the Chinese government
as commissioner of Customs for
southern Chinese Formosa. The
following is a quotation from that
portion of my report to the minis-
ter that relates to the temporary
fort built at Tawsang in 1867
by General Le:

" Before closing this, I regret
" to have to report to your Excel-
" lency that, While the aborigines of
" Taiwan have kept their faith, the
" Chinese, from Whom We should
" have expected quite as much, if
" not more, have yet to perfect

their

their part of the agreement. When the case of the Rover was compromised subject to the approval of the Minister and the home office, it was understood between the Chinese officials and myself, that they would recommend to Peking the organization of the district of Liang Kiau under civil and military rule, and that, if allowed by their imperial superiors, they would build a fort at Tosau Pong, thereby meeting the views of the lamented Rear-Admiral Bell and of your predecessor in office. In May last, Mr. Williams instructed me to urge upon the provincial authorities the necessity of complying with the orders (given in accordance with these views) of

their superiors in Peking. I did so, and received the assurance, first of the Viceroy, and after of the Imperial commissioner, that they would satisfy me; but I soon discovered that I had been deceived. While in Taiwanfoo, because I was not on the spot to see the thing done, Tseng Tajen did not even mention the case to the authorities of Taiwan. Now I find that the temporary fort built at Tosau Pong by Chentai Lew, in 1867, has been abandoned. The two guns in it, and the few soldiers left in charge, have been removed to Chasiang; and all this, so they say, because a thorough survey of the district has to be made, and a new reference to Peking is required. Now that the case is again

in in Peking, I leave it to your Excellency's care, and shall await future instructions."

From this We see that the indication of an intention to take possession of that portion of aboriginal Formosa that lies south of Tong ku Which had been given by General Lew in 1867 not ^occupation, but was actually succeeded by only Was not followed up by ^ a renunciation of such intention, Which is proved by the removal of the guns from the fort at Tesspong and thus Mr. Smith's argument falls to the ground.

But this is not all. On the 29th of July 1871 H.B.M's consul at Taiwan fo, having heard that the British ship "Loudown castle, had been wrecked on the southwest coast of

Formosa, and that her captain and rest of her crew had fallen into the hands of the natives, sent his assistant Mr. Pelham Warren, to the scene of the occurrence. From the latter's report of his proceedings here, a copy of Which, written and signed by his own hand, is in my possession, We see that, at that time, the country south of Tong ku was not occupied by the Chinese.

Again in March 1872, having gone to Southern Formosa at the request of the ruler of the eighteen southern tribes, I, in company With three U.S. Naval officers, had an opportunity to inquire into the murder of the Japanese of Liu chew by the Boutans. The result of our joint inqui-

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enquiries was that the country from Kinglee to the south end of the island had not yet been occupied by China. (see my printed despatch to the U.S. Minister at Peking, dated April 17th. 1872, copy of which is in my hands.

When H.I.J.M's High commissioner arrived at Tealiao on the 22nd of last month, he found that not only was southern Aboriginal Formosa not occupied by China, but that no attempt had ever been made by her to establish any authority here to represent the government that now claims jurisdiction over it.

Count de Bengonski, who is quoted by Dr. Williams in his "Middle Kingdoms" Vol. 1

page 118, visited the east coast of Formosa in 1771, and not only negociated with the aborigines, but even assisted the one tribe against the other in their quarrels, and was almost on the point of founding a state here, without ever seeing or hearing of the Chinese or of any authority that they possessed among the natives.

In a correspondence with me, while I was conducting the negociations with the chief of the aborigines in 1867. for the adjustment of the "Rover" case, appears the following declaration, emanating from the governor of the island himself "articles 11 and 13 of the treaty" (between America and China) provide that within the jurisdiction of the Emperor

person, either on shore or at sea, any one who shall molest an American shall be punished by the civil and military authorities to the best of their ability; but as, in the "Rover" case, the americans were not murdered on Chinese territory or on Chinese seas, but in a region occupied by savage tribes, relief could not be asked for under the treaty Were it in our power to seize the murderers, We Would gladly do so, that the Chinese might keep friendly intercourse With foreigners But the savage region does not come Within the limit of our jurisdiction to do so." (see U. S. Commercial Relations, 1871 Page 166)

It is true that it appears from other sources that ultimately the

Chinese sent an armed force against the aborigines (September 11th, 1867); but not that the government of the Emperor of China had ever recognized the statement made by its officers in connection with the relations of China towards the aborigines of Formosa. On the contrary, it plainly appears from the account published of the expedition that it was not intended to enforce the imperial authority on the aboriginal country, but simply to keep friendship With the United States, as stated in the governor's despatch, quoted above, and to save herself from the inconvenience of having a large foreign force landed on shores so near to Chinese territory (see U. S. Diplomatic correspondence, 1867 p

1867/3 China Page 498.) In fact, all that the Chinese general had done was to give countenance to myself as United States Consul, and I had gone alone to Tamkotok's territory for the purpose of investigating the circumstances of the murder of my countrymen, and taking such measures to prevent the recurrence of similar tragedies as the government of the Emperor had declined to take, on the ground of want of jurisdiction, and which, in my own judgment, and acting under instructions from the government of the United States, I thought necessary.

Mr. Smith says that the circumstance of the Chinese general Lew, being no party

to the conference between the aboriginal chief, Tamkotok, and myself does not appear to be any disclaimer by Lew of the jurisdiction of his government. On the contrary, says Mr. Smith, if Lew had attempted to negociate with Tamkotok upon any other than a purely military question growing out of his expedition × × × he would, so far as he could, have acknowledged that Tamkotok and his band were a power capable of treating on equal terms with the government of China. Lew would not have ventured to say, on behalf of China, what the American consul, without any visible authority assumed to say on behalf of the United States, We are not unwilling to forgo the

the past.

By this Mr. Smith proves nothing. In the first place, my instructions were full, and my language to Tantetok was justified by them. I had been invited in conjunction with the Chinese authorities, to bring the murderers to punishment for what they had done, and to prevent such atrocities in the future. (Mr. Burlingame to the U. S. Consul at Amoy April 23rd 1867.) In the second place, General Le was empowered to negotiate, and was anxious to do so. But Tantetok declined. They (the Chinese) had sent a deputation to secure for their country men the protection promised to foreign

ers. The chief answered that he had done nothing and would do nothing with the Chinese officials. (see U. S. Diplomatic correspondence, 1868. Part 1. China. Page 509.) It was thus made apparent that I had done every thing. While the Chinese had remained were spectators. After my return to China, the Viceroy of Fuh Kyen, under whose authority the Chinese possessions in Formosa are placed, circulated the following note:

"The United States Consul made an agreement with the savage chief Tantetok respecting the kind of flag to be hereafter used, so that, in future times, if any foreign vessel, being in distress near that place, will show that flag, the savages

" savages will do their utmost
" to render assistance; but if foreig-
" ners from merchant vessels having
" no business there, land at that
" spot and cause trouble, and
" the savages kill or ill treat
" them, the chief will not be held
" responsible for the consequences.
" The consul agreed therefore that
" the flag should have reference
" only to merchant vessels in
" distress. The same notice was
published by the United States
in European papers and by
England in a circular addressed
to her consuls in China.

It must be remembered that in no portion of the Viceroys notification is there any reference made to General Le, who commanded the escort

given to me, and why? certainly because China had no jurisdiction over the tribes with whose chief the compact was made, and because the aboriginal chief had refused to treat with the Chinese representative of the Empire had he not been so, the agreement would have been made by one of the Chinese officers who were on the spot at the time, and not by the U. S. consul. This agreement was made in 1867, and was reaffirmed in February, 1869, not by a Chinese officer, but by myself. There are two witnesses to the paper, (see U. S. commercial Relations, 1869. Page 92) one an Englishman, and the other, Mr. Wan a Chinese officer, who signs himself commissioner

of

of Customs for southern Formosa. Now had China claimed jurisdiction over these tribes, surely such an officer a revenue officer who is supposed to know every inch of the territory over which he has jurisdiction would not have voluntarily witnessed a document wherein all the rights of the government he was serving were utterly ignored and if, in signing this paper, he had done wrong, he would have been reprimanded, whereas he, today, holds a position of high trust in Peking.

Nor China may say that if aboriginal Formosa has not been occupied and organized by her, it is because its inhabitants are not susceptible

of civilization. Not only my own experience, but that of the Dutch, who occupied the island from 1662 to 1662, proves the contrary (see "Verhaarlooze Formosa, quoted above; also Relation de la prise de l'isle Formose, etc, page 31.) Under the Dutch occupation they knew how to write their own language in foreign characters. This fact is attested by the Dutch authors of works on Formosa, and authenticated by the title deeds and other documents now found among the descendants of some of the tribes that lived under the Dutch rule. One of these deeds was sent to me by Dr. Maxwell, of Taiwanfoo, and I now have a photograph of it. The parch-

ment

perusal of some of the dictiona-
ries of their language will also
show that they had otherwise at-
tained a certain degree of civi-
lization under the Dutch, for in
them are found names of objects
that are in use only among
civilized people, and words con-
veying ideas common only to
the most enlightened races (see
Happart's Dictionary and For-
mosansche Woorden Lijst, in
my possession).

One of these civilized
aborigines, but very few remain.
Despoiled of their lands and
reduced to slavery by the
Chinese after the conquest by
Koxinga, they left the plains
and took refuge at the foot
of, or in the mountains. There

is a large colony of them on the
East coast, almost due East
from Taikao; and probably many
more are scattered about in what
is now called aboriginal Formosa
at points that have not yet been
visited by any Western explorer.

The Formosan tribes, with
settlements of friendly Kakkas
and Pepros on their front, as-
sert yet for themselves an un-
limited independence and abso-
lute sovereignty over the region
occupied by them; and this cla-
im will stand good unless
China can show that she
has satisfactorily established her
right, under that law of na-
tions which refers to the con-
tiguity of a semi civilized power
to a country occupied by wild

Kale

race to seize upon the territory and hold it, not only against the natives themselves, but against every one exactly as the United States claim sovereignty over the Indians in America, and the British over the natives of New Zealand and Australia, by conferring the benefits of civilization upon them, at an equivalent for the national independence, of which, against their will she deprives them.

Bluntschli, in his International law, codified, page 165, says that "the true line of conduct to follow has already been traced and applied by the Puritans in New England and by William Pain in Pennsylvania. They

" would buy from the Indians the ground they wanted to till and the ownership of which they wished to transfer to the colonist. When colonization has become possible, and men who have always lived in a civilized state, can live in that country with their families, it becomes necessary to protect the colonists to guarantee to them the undisturbed enjoyment of the soil, and to endeavor to civilize the savages." (Droit Natuel 1. 15 § 81. Phillimore 1. xlvi and following.)

The condition of the Formosan aborigines is this. It is true that they are chiefly taken up with hunting, but they are far from living entirely upon the proceeds of the chase. Those of

of the men who, through age or infirmity, become unfit for the arduous exertion of hunting, spend their time in the fields, tilling the ground with the women, and raising millet and other food for the maintenance of the tribe. The women also weave cloth. That part of their country which is under culture offers one of the richest sights that one can conceive, and their knowledge of agriculture does not seem to be inferior to that of any people that I have ever visited either in the East or in the West. They live together in villages, in houses built like those of the Japanese country people, and their cleanliness would be worthy of imitation by the

Chinese. The tribes do not live together as a nation united under one king, but each tribe, or collection of tribes, constitutes a free organization, each member thereof contributing to the maintenance of the common wealth, acting either under a hereditary chief, or under officers elected by the members of the tribe. They believe in a supreme being and also, like the Chinese, in the occult influences of nature; but they worship no idols. They have now no system of writing, but have a high appreciation of eloquence, prudence and wisdom, which, as a rule, are the only traits among them that render a man eligible to public office. They are by nature exceedingly civil and po-lite

police, and would be inclined
to hospitably receive strangers.
Had they not been rendered ex-
tremely suspicious of them by
the harsh and cruel treatment
received at the hands of the
Chinese since the expulsion of
the Dutch from the island in
the 17th century; but for a hun-
dred years past they have
strictly and persistently closed
their territory to them, even
going so far in certain places
as to put to death defenceless
castaways. In this position the
task of the Chinese was very
simple. They had only to
teach them what they have
learned but lately themselves,
and that is, a proper consi-
deration and kind feeling for

a stranger. They should have
taught them writing, which has
been known to them from time
immemorial, and in addition am-
ong them some useful arts. They
might also have tried to
resist the efforts which were so
successfully made by the Dutch,
to put an end to their trade,
which last would have been the
most difficult task of all, as they
(the Chinese) have not yet been
able to accomplish this among
themselves.

But none of these things
have they done; on four, the
only result arising from their
intercourse with these primitive
people has been an alarming
increase among them of their
natural propensity to treat their
enemies

enemies with cruelty.

But it may be said that, if the Formosans are so far advanced in civilization, it is the duty of China, to leave them alone, which is what she has done; and that Japan herself has no business in the place. But these arguments are easily refuted. The only conclusions that could be drawn from them is that the Formosans are independent communities which no one has any right to attack, and which it is the duty of every one to protect. And so they would be, I believe, if the Chinese had not been living so near them.

IV

Can China reconcile

her course on Formosa, with a view to establish her pretended rights over aboriginal Formosa? What she has lost and what Japan has gained.

As it is, it would not be impossible for China to reconcile her course with a view to establish her pretended rights over aboriginal Formosa; for not only has her past policy with the Formosans deterred her forever from establishing any political relations with them, but, what is worse, it is fast tending to make them more and more inimical to strangers. She has thus lighted up a conflagration which

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Which threatens the whole world,
and which she is unable to
extinguish. She has failed to
drive the aborigines from the
Southern and Eastern coasts
into the mountains, and they
now remain a great evil
pest to all mariners who may
be so unfortunate as to be
thrown on their shores. Their coun-
try especially the southern part
of it, lies directly on one of the
principal highways of commerce,
and unless they are either pac-
ified or exterminated there is no
hope of ever seeing this state
of affairs change; and inas-
much as Japan is in fact
sufferer at their hands, she
has a perfect right to go and
deal with them as she please,

provided she will conform to the
principles of justice and equity
which from the basis, not only
of international relations, but also
of all intercourse with even the
most degraded of God's creatures.
Until she violates these principles
in her dealings with the Formosans.
I do not believe that any one
can justly find fault with her.

V

Conclusion

From the foregoing it clearly re-
sults, I believe:

First. That China has never
had any rights over aboriginal
Formosa.

Second. That, if she ever will
have

have been absolute so long as aboriginal Formosa remained uncivilized, but were simply conditional and subordinate to her will and ability to perform certain obligations which she would have contracted by assuming political jurisdiction over the country.

Third That the condition of her assuming these rights was that she should lose the same the day she should fail to perform her obligations towards the aborigines; thereby making herself liable to be dispossessed by the legitimate occupation of all wild and uncultivated lands, viz the civilized World, exactly as a tenant is ejected by his landlord when

he ceases to pay the rent of the premises which he holds from him or fails to fulfil any other obligation that may be incumbent upon him by the terms of his lease.

Fourth That the ejection or dispossession must be made in favor of the first civilized nation that may occupy the vacant land with a view to do there what her predecessor had so flagrantly neglected to do.

—VI—

Was the action of Admiral Bell, as alluded to in Question no legal. A reply to Mr. Comish's reply to the

Question

The above is undoubtedly what Mr. Secretary Seward meant when he wrote to Mr. Burlingame after he had heard of the murder of the crew of the American barque "Rover" by the Boabuts: "you are instructed to report whether the Chinese government is established in any or in what degree in the region where the atrocious transaction took place. If clearly so, then to demand investigation and punishment, with such indemnities as are possible."

"If no organized governments exists, you will suggest what form of proceeding

should be adopted with a view to obtain redress and prevent such transactions in future". (see U.S. Diplomatic correspondence 1867-1868. Vol 1 Page 498.) That is, if no organized government existed in aboriginal Formosa, the fact that the southern end of it was in one of the great maritime thoroughfares of the World, necessitated the establishment of one there, to which end Mr. Burlingame was instructed to suggest what form of proceeding should be adopted.

In the meantime, Admiral Bell, having ascertained that the region was settled by semi-civilized tribes, who were obedient to no regularly constituted state, and from whom neither

neither redress nor protection could be obtained / see the Report of the Secretary of the Navy for 1867. Page 7), and, to use the Secretary's own words, / see same Report, page 8) "not being disposed (a) that so great a crime as had been perpetrated here should pass unpunished," in compliance with the rules of international law, went there "for the purpose of destroying, if possible, the lurking-places of the savages who had murdered" his countrymen. But

(a) This language is the language of approval, and the fact of the Report going to congress without any mention being made of disapproval of the Admiral's conduct by the

knowing well that no security could ever exist there for foreign sailors until the region should be put under the control of some regularly constituted authority, and also knowing that America did not wish to acquire it, and that it would always remain as it was until some civilized power should annex it, he suggested China as being the most suited to do it, at that time, every one in China thought the same, and because I thought so myself. I urged the Chinese to occupy it. If the action of Admiral Bell was approved, it was not because of his suggestion that China should

Secretary, is a proof of tacit approval by the President.

annex the region, but because of all he had done from the beginning of his operations to the very end first in treating the region as unoccupied, and second, in suggesting that it should be occupied, not by America, not by any Western power, but by the power that was nearest to it, and consequently, should have been the best adapted to do what was wanted there.

——VII——

What do the late declarations of the Chinese regarding Formosa amount to?

On March, 1872, five years later, when I went to investigate the murder of the Lew Chewans, I still held the same opinion; and I again urged upon the Chinese the necessity of doing what I had recommended them to do in 1867. A plan of organization was then framed, and referred by the Governor of the island and myself to the Central Government at Peking through the Tsung li Yamen and the U. S. Minister. But it was all in vain. Two hundred years experience had taught H. J. M.'s government that the aborigines of Formosa could neither be civilized nor organized by them. That the Chinese government has finally given up

up all idea of civilizing the country is shown by a declaration made by it in reply to certain inquiries from H. B. Mrs Minister to japan respecting the claims that China might have upon the region. "Although We do not attempt to interfer" Wrote the Tsung li Yamen, "With their (the aborigines) peculiar usages, or bring them under the strict restraint of our laws, still the regions they occupy all belong to the Middle Kingdom. But this bringing them under the strict restraint of her laws is exactly What China ought to have done, and by failing to do it, she has forfeited all right to the country. In fact, as I

have said above, it is a vacant land Where any power may go to transact any business that it may have there be it for negociation, War, or mere curiosity; and if Japan chooses to send any army there, no one has a right to object. (China no more than any other country) Even if that army be entirely composed of Westerners or Americans.

Yokei, June 11th 1874.

Chs. W. Le Gendre.

Enclosure No 1.

Government Telegraphs.

Dated 9.4 a.m. 29th

Station Nagasaki. Date 1 May, 1874.

To

Message received at 9.28 a.m.

From

Jno A Bingham

W.P. Mansum

United States Consul

Nagasaki.

Ship New York has been detached from expedition and orders by Japanese government not to proceed accordingly keep ship in port.

Rec'd May 1st 10 a.m.

Signature

アシャンテー戦隊帰旋ノ儀式被萃

The Review of the Ashantee Troops Sir Garnet Wolseley may well have felt a proud man when yesterday through the Royal Park of Windsor, before the eyes of shouting thousands, he led his little army past their Queen. Not a year has gone since in the same place, the Shah of Persia sat by the Queen of England, to see the English troops march past; but both the hour, and the men, were different then. It was a fine spectacle, a splendid pageant which then passed before the eyes of the Persian King beneath that bright June sun; but the sight yesterday was something more. Then the flower of the British Army, the chosen corps of the service, were brought out to show the stranger how English soldiers

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